

****24.08.2021****

****Sanction for Violation of GDPR****

The National Supervisory Authority has completed an investigation in August 2021 regarding the operator Actamedica SRL and found violations of the provisions of Article 12 paragraph (3), Article 15 paragraph (1), Article 28 paragraph (1), Article 32, and Article 33 of the General Data Protection Regulation.

As such, the operator Actamedica SRL was sanctioned contraventional:

- with a fine of 9836.6 lei (equivalent to 2,000 EURO) for violating Article 28 paragraph (1) and Article 32 of the General Data Protection Regulation;
- with a fine of 4918.3 lei (equivalent to 1,000 EURO) for violating Article 33 of the General Data Protection Regulation;
- with a warning for violating the provisions of Article 12 paragraph (3) and Article 15 paragraph (1) of the General Data Protection Regulation.

The investigation was initiated following the receipt of a complaint alleging that Actamedica SRL from Târgu-Mureș had sent a notification to an individual regarding the loss of their biological samples and a sum of money sent via a courier company, with the package arriving damaged at the recipient. In response to the request for information on what personal data had been exposed in this incident and whether the ANSPDCP had been notified regarding this incident, the operator indicated to the individual the contact details of the company's lawyer and an email address from the courier company to express their "grievances."

During the course of the initiated investigation, the National Supervisory Authority found that Actamedica SRL had not adopted sufficient security measures, in accordance with Article 28 paragraph (1) and Article 32 of the GDPR, adapted to the nature of the personal data that had been processed, which led to the occurrence of a security incident. In this context, it was found that the provisions of Article 28 paragraph (1) and Article 32 of the General Data Protection Regulation were not respected.

Furthermore, the National Supervisory Authority found that the operator did not notify the National Supervisory Authority of the aforementioned security incident, thus violating the provisions of Article 33 of the General Data Protection Regulation.

On the same occasion, the National Supervisory Authority noted that Actamedica SRL did not provide evidence that it had communicated a response to the postal address of the affected individual regarding the categories of personal data that had been exposed in the incident, in relation to the express request submitted. Therefore, it was found that the provisions of Article 12 paragraph (3) and Article 15 paragraph (1) of the General Data Protection Regulation were not respected.

Additionally, the operator was subject to the following corrective measures:

- the corrective measure to ensure compliance with the General Data Protection Regulation of the personal data processing operations, by implementing appropriate technical and organizational security measures specific to the nature of the processing and identified risks, throughout the entire data processing cycle, including regarding the selection of empowered persons who provide sufficient guarantees for implementing appropriate technical and organizational measures, so that the processing complies with the requirements set forth in the regulation and ensures the protection of the rights of the data subjects;
- the corrective measure to respond to the request of the data subject regarding the categories of personal data affected by the occurrence of the security incident, following which the response will be communicated to the postal address indicated in the request.

****Legal and Communication Department****

****A.N.S.P.D.C.P.****